

**BEFORE THE
FEDERAL MARITIME COMMISSION**

PKDC, LLC,

Complainant

v.

CMA CGM S.A.,

Respondent

DOCKET NO. 24-21

RESPONDENT’S UNOPPOSED MOTION FOR EXTENSION OF TIME

Pursuant to 46 C.F.R. §§502.71 and 102, Respondent CMA CGM S.A. (“CMA CGM”), through counsel, hereby moves for an extension of time to reply to Complainant’s Opposition to Respondent’s Partial Motion to dismiss from Friday, July 12 to Friday, July 16 (3 business days).

The complaint (“Complaint”) in this matter was served on May 15, 2024. On June 10, 2024, Respondent timely filed a motion to dismiss four of the five counts set forth in the Complaint (“Motion”). Complainant’s opposition to the Motion was originally due on June 25. Complainant sought (without opposition by Respondent) and was granted a 10-day extension of time to file its opposition, which was timely filed and served on Friday, July 5, 2024. Under 46 C.F.R. §502.70(c), Respondent’s reply to the opposition is due Friday, July 12.

Because the opposition was filed on the Friday of the July 4 holiday period, work on the response could not commence until Monday, July 8. In light of the schedule of counsel for Respondents, including document review and production in other Commission proceedings, and the previously scheduled holidays of certain of Respondent’s personnel, the July 12 deadline

does not afford sufficient time for drafting of the reply and review and approval of the draft by Respondent.

The modest extension will enable Respondent and its counsel to complete, review and approve the filing. This request could not be filed seven (7) days in advance of the deadline, as that was the date on which the opposition was served.

As required by 46 C.F.R. §502.71, counsel for Respondent has conferred with counsel for Complainant, who has advised that Complainant does not oppose this request.

WHEREFORE, it is respectfully requested that the deadline for filing Respondent's reply to Complainant's opposition to the Motion be extended to Wednesday, July 16.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Wayne R. Rohde", written in a cursive style.

Wayne R. Rohde
Kathryn Sobotta
COZEN O'CONNOR
1200 Nineteenth Street, NW
Suite 300
Washington, DC 20036
(202) 463-2507

Dated: July 9, 2024

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 9th day of July, 2024, the foregoing Motion was served via electronic mail on:

Jason Kennger, Esq. (jkenner@strtrade.com)

Andrew Margolis, Esq. (amargolis@strtrade.com)

A handwritten signature in black ink, appearing to read "Wayne R. Rohde", is positioned above a horizontal line.

Wayne R. Rohde